

HOUSE No. 43

So much of the recommendations of the Department of the State Treasurer (House, No. 35) as relates to the Massachusetts Turnpike Authority Employees' Retirement System. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Massachusetts Turnpike Authority Employees' Retirement System.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 25 of the acts of 2009 is hereby amended by striking section 139
2 and inserting in place thereof the following section:-

3 SECTION 139. Notwithstanding the provisions of any general or special law to the
4 contrary, employees of the Massachusetts Department of Transportation as defined in Section 8
5 of this Act who are hired after the effective date of this act shall become members of the
6 Massachusetts State Employees' retirement system, and notwithstanding the provisions of any
7 general or special law to the contrary including, but not limited to, paragraph (c) of subdivision
8 (8) of section 3 of chapter 32 of the General Laws, said system shall be responsible for all
9 liability attributable to said service of such employees. The liabilities attributable to any other
10 service of such employees shall be recoverable by the commonwealth pursuant to the terms of
11 paragraph (c) of subdivision (8) of section 3 of chapter 32 of the General Laws.

SECTION 2. Said chapter 25 of the acts of 2009 is hereby further amended by striking section 159 and inserting in place thereof the following section:-

SECTION 159. (a) Effective upon the date of dissolution of the Massachusetts Turnpike Authority: (1) the Massachusetts Turnpike Authority Employees' Retirement System shall be dissolved ; (2) all members of the Massachusetts Turnpike Authority Employees' Retirement System shall become members of the Massachusetts State Employees' Retirement System; (3) the management of benefits of the dissolved Massachusetts Turnpike Authority employees' retirement system shall be transferred to the state board of retirement in section 18 of chapter 10 of the General Laws which board shall have with respect thereto the general powers and duties set forth in subdivision (5) of section 20 of said chapter 32, including the reimbursement for liabilities attributable to the service of such members with other governmental units recoverable pursuant to the terms of paragraph (c) of subdivision (8) of section 3 of chapter 32 of the General Laws; (4) all data, files, papers and records and other materials of the Massachusetts Turnpike Authority retirement board provided for in paragraph (b) of subdivision (4 1/2) of said section 20 of said chapter 32 shall be transferred to and held by the state board of retirement; (5) ownership and control of all the assets of the dissolved Massachusetts Turnpike Authority Employees' Retirement System in the custody of the secretary-treasurer of the authority shall be transferred to the Pension Reserves Investment Management Board and be made assets of the Massachusetts State Employees' Retirement System; and (6) the Massachusetts Turnpike Authority retirement board in said paragraph (b) of subdivision (4 1/2) of said section 20 of said chapter 43 shall be abolished; provided, however, that the members and officers thereof shall be authorized to do all such things and take all such action as may be necessary or desirable to be done or taken by them to effectuate the transfers to be made pursuant to this section.

(b) Effective upon the date of dissolution of the Massachusetts Turnpike Authority, the payment of all annuities, pensions, retirement allowances and refunds of accumulated total deductions and of any other benefits granted under the sections 1 to 28, inclusive, of said chapter 32 are hereby made obligations of the commonwealth.

SECTION 3. Section 1 shall take effect on January 1, 2010.

SECTION 4. Section 2 shall take effect on July 1, 2009.